

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jennifer Jarett	Team: Team # 1	CCRB Case #: 201003856	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/17/2010 4:45 PM	Location of Incident: 7800 Flatlands Avenue	Precinct: 69	18 Mo. SOL 9/17/2011	EO SOL 9/17/2011	
Date/Time CV Reported Wed, 03/17/2010 4:45 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 03/23/2010 2:18 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Nicole Gondry	20211	930241	069 PCT
2. POM Forrest Hirsch	05029	941905	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Forrest Hirsch	Force: PO Forrest Hirsch struck individuals with a vehicle.	
B.POM Forrest Hirsch	Abuse: PO Forrest Hirsch stopped § 87(2)(b) and § 87(2)(b) Ferquieres.	
C.POF Nicole Gondry	Abuse: PO Nicole Gondry stopped § 87(2)(b) and § 87(2)(b)	
D.POM Forrest Hirsch	Force: PO Forrest Hirsch used physical force against individuals.	
E.POM Forrest Hirsch	Abuse: PO Forrest Hirsch searched individuals.	

Case Summary

On March 17, 2010, an anonymous male called 911 to report a complaint of police misconduct. The 911 operator forwarded his complaint to the Internal Affairs Bureau, who referred it to the CCRB under log number 10-13520 on March 23, 2010.

On March 17 at 4:45pm, the anonymous male caller was walking behind “three” youths near 7800 Flatlands Avenue in Brooklyn, who were identified through investigation as § 87(2)(b) and § 87(2)(b), § 87(2)(b) (or § 87(2)(b) in the Lexis/Nexis search), § 87(2)(b) and § 87(2)(b). Two plainclothes officers were in an unmarked black Impala. The driver, identified through investigation as Officer Forrest Hirsch, was a white male and the passenger was a white female, identified through investigation as Officer Nicole Gondry. Officer Hirsch hit one of the youths as they were crossing the street. The youth stumbled and continued to walk across the street, but the officer came around again and hit another one of the youths. They continued to walk, but the officer again turned the vehicle around and drove almost onto the sidewalk, stopping the youths. The officers exited the car and Officer Hirsch began to search the youths, § 87(2)(g). At this point, the anonymous 911 caller became scared that the officers would target him next, so he walked away. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

The complainant did not provide his name or contact information and had no identifying information for the victims. The IAB intake recording was ordered to confirm the accuracy of the information regarding the time and place of occurrence, but the phone call was not recorded. There were, however, four documented stops of males at the intersection of Flatlands Avenue and East 78th Street in Brooklyn at the time period of the call to IAB, and the stops were recorded by Officer Hirsch and Officer Gondry, who match the physical descriptions of the subject officers. On April 29, 2010, a Lexis/Nexis search was performed for all four males, but phone numbers were only available for § 87(2)(b) and § 87(2)(b). On April 29, 2010, a message was left with § 87(2)(b)'s father. § 87(2)(b)'s phone number had a continuous busy signal. On April 29, 2010, first contact letters were sent to the four victims. On May 4, 2010, the undersigned investigator called § 87(2)(b) who stated that he was one of the people involved in this incident, but he did not have time to speak about the incident and asked to be called after 5pm. A voicemail message was left for § 87(2)(b) that evening. Two more messages were left with § 87(2)(b)'s father on May 12 and May 17, 2010. Three more calls were placed to § 87(2)(b)'s phone number between May 4, and May 17, 2010, and the phone line always had a continuous busy signal. Final contact letters were sent to all four victims on May 12, 2010. The first contact letter sent to § 87(2)(b) was returned as, “no such number, unable to forward.” A search of the DOC inmate locator on May 17, 2010 confirmed that none of the victims is currently incarcerated.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Team: ____1____

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Investigator:	_____	ASI Jennifer Jarett	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date